

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-17

SAMSUNG ELECTRONICS AMERICA, INC.,
Complainant,

v.

ORIENT OVERSEAS CONTAINER LINE, LIMITED AND OOCL
(EUROPE) LTD.
Respondents & Third-Party Complainants

v.

SAMSUNG ELECTRONICS COMPANY, LTD.,
Third-Party Respondent.

COMPLAINANT’S MOTION FOR ENLARGMENT OF TIME

Complainant Samsung Electronics America, Inc. (“Complainant” or “SEA”), by their undersigned counsel, respectfully submits this Motion for Enlargement of Time. Counsel for SEA attempted to meet and confer on this Motion with counsel for Respondents Orient Overseas Container Line, Limited and OOCL (Europe) LTD, (collectively, “Respondents” or “OOCL”) however was unable to do so in light of the current religious holiday.

Pursuant to 46 C.F.R. § 502.102, motions for enlargement of time “may be granted upon a showing of good cause” if “received at least seven (7) days before the scheduled filing date.” Complainant respectfully requests an enlargement of time for completion of substantial document

production and to avoid either substantial prejudice to two of the three parties; or alternatively, the creation of a dual-track discovery and procedural schedule.

SEA & OOCL Document Production

SEA requests an extension of the current discovery and procedural schedule for good cause. As set out below and as noted in the Joint Status Report filed on September 2, 2025, the volume of data necessary to prove and/or defend the allegations in this matter are voluminous, the analysis is transaction specific, and the Parties (Complainant, together with OOCL) have been diligent.

On June 26, 2025, the Parties filed a Joint Status Report (Doc. 60, “JSR1”) which expressed that requiring the completion of discovery within the 150-day standard noted in the Federal Maritime Commission Rules does not provide a realistic timeline for a case such as this, in light of the work which the Parties must complete and the complex nature of the required container-by-container analysis.

On August 5, 2025, the Presiding Officer acknowledged in his Order that “as long as the parties remain diligent in moving discovery forward, I am amenable to extending the discovery deadlines if necessary. The Parties, however, will need to justify any extension requested, and provide details supporting the request.”

Current Status of Discovery and Justification for Extension

The Commission’s Presiding Officers have been very sensitive and responsive to the need for full factual development in cases where the amount at stake is substantial. The factual record necessary to pursue and defend this matter in light of the number of charges involved is both extensive and complex and this request is not unique, but rather consistent with multiple other similar proceedings.

There are approximately 4,438 charges at issue. Establishing liability and defenses requires a container-by-container analysis that ties each charge to the actual sequence of operational events. SEA is ready to produce documents, but first requires agreement and finalization of the Stipulation and Order of Confidentiality, as well as the ESI Protocol. The Parties have exchanged drafts and expect to finalize agreement on those items after the religious holiday.

OOCL has produced approximately 1,949 documents, composed of 14,996 pages, however its production did not include the native files or attachments, hindering SEA's review of the production. The Parties have conferred on this point and SEA understands that OOCL is in the process of re-running its production to conform to the anticipated ESI Protocol. The Parties anticipate large productions on or before September 30, 2025, followed by extensive review of the voluminous documents. The Parties have collaborated and resolved many issues through conferral; however, motions to compel may be necessary on targeted topics. Additional time will allow the Parties to narrow or eliminate those disputes.

The Parties have acted promptly by conducting collections, continuing productions, and meeting and conferring on perceived deficiencies, as well as cooperating on the drafting of the confidentiality stipulation and ESI Protocol. An extension proportional to the volume of documents at issue and the work required to produce a useable record is necessary. Adherence to a 150-day schedule would lead to serial deficiency letters, rushed productions, rolling privilege disputes, and piecemeal depositions that must be reopened once records are complete. A modest extension avoids duplication of effort, reduces motion practice, and will facilitate the creation of a coherent and complete evidentiary record. If the extension is granted, the Parties will be able to substantially complete core document production, exchange and complete

privilege logs and targeted supplements resolving known deficiencies without motion practice where possible, and efficiently conduct depositions of fact witnesses.

Accordingly, good cause exists to extend the current discovery and procedural schedule. The Parties have acted diligently, the factual record is extensive and complex, and the requested extension is necessary to develop a fair and accurate record on the 4,438 charges at issue. The extension will reduce motion practice, avoid duplicative discovery, and align depositions and expert analysis with complete data.

Status of OOCL's Amended Counterclaim and Third-Party Complaint

With regard to OOCL's Third-Party Complaint against SEC, on September 22, 2025, the Presiding Officer granted OOCL's Unopposed Motion for Leave to File Amended Third-Party Complaint and Suspend Time to Respond to Third-Party Respondent's Motion to Dismiss, in recognition that OOCL's original Third Party Complaint was very similar to OOCL's Counterclaim against SEA, which the Commission had dismissed, but had allowed OOCL to amend (Doc. 79). The Order set a briefing schedule for the anticipated Amended Third-Party Complaint, with briefing to be completed by November 12, 2025 (*Id.*).

With regard to OOCL's Counterclaim, on July 30, 2025, the Commission ruled that OOCL's Counterclaim against SEA was affirmed as dismissed, but the Commission granted OOCL leave to file an Amended Counterclaim (Doc. 66), which OOCL subsequently did on August 13, 2025 (Doc. 69). SEA filed its Motion to Dismiss the Amended Counterclaim on September 8, 2025. OOCL's opposition to the Motion to Dismiss will be due on September 25, 2025, and SEA's reply will be due on October 2, 2025.

Accordingly, the current document production deadline of September 30, 2025 will arrive before the Presiding Officer has the opportunity to determine whether any counterclaims or third-

party claims will be presented in this matter. If the Amended Counterclaim and the Amended Third-Party Complaint are dismissed, SEA and OOCL will have been put to the burden of conducting discovery on claims that did not survive motions to dismiss, defeating one of the key purposes of a motion to dismiss.

Alternatively, should those claims survive, then the matter would likely fracture into two schedules: one as between SEA and OOCL, and a later one governing OOCL and SEC. That would invite inconsistent obligations, duplicative meet-and-confers, require reopening depositions once pleadings are finalized, and drive avoidable motions to compel solely to preserve rights against deadline cutoffs.

A single coordinated schedule after the status of the Amended Counterclaim and Amended Third-Party Claim is resolved would avoid serial briefing on motions to dismiss, renewed motions after amendments, and would help to minimize discovery disputes.

Conclusion

Accordingly, SEA respectfully submits that multiple instances of good cause exist for granting an enlargement of time to the discovery and procedural schedule, and failure to grant the requested enlargement may result in prejudice. Further, the granting of the enlargement of time will advance judicial efficiency, facilitate the independent resolution of discovery disputes, and permit a more complete record for the Presiding Officer, the Commission, and the courts.

Regarding the length of a proposed extension to the current discovery and procedural schedule, SEA proposes a conference to discuss a reasonable length of time to accommodate the Parties' respective concerns.

Dated: September 23, 2025

Respectfully Submitted,

MILLS BLACK LLP

By: /s/ **Peter F. Black**

Peter F. Black
H. Allen Black
Imran O. Shaukat
1215 19th Street NW,
Washington, D.C. 20036
Telephone: (202) 987-4100
Email: pblack@millsblack.com
Email: hallenblack@millsblack.com
Email: ishaukat@millsblack.com

*Counsel to Complainant, Samsung
Electronics America, Inc.*

CERTIFICATE OF SERVICE

I hereby certify that I have this day served the foregoing document by electronic mail upon the following persons/addresses:

1. Office of the Secretary
Federal Maritime Commission
secretary@fmc.gov
2. Hon. Richard Ambrow - *Administrative Law Judge*
Federal Maritime Commission
Judges@fmc.gov
3. JEFFREY/FENNEMAN LAW + STRATEGY, PLLC
Counsel for Respondents
 - a. Rebecca A. Fenneman
RFenneman@JeffreyFenneman.com
 - b. Kaya C. Massey
KMassey@JeffreyFenneman.com
 - c. Nicholas L. Webb
NWebb@JeffreyFenneman.com
4. Cozen O'Connor
Counsel for Respondents
 - a. Wayne R. Rohde
wrohde@cozen.com
 - b. Christopher Raleigh
craleigh@cozen.com
 - c. Rachel Schwartz
rschwartz@cozen.com
 - d. Kathryn Sobotta
ksobotta@cozen.com
5. Hohenstein & Parkinson, LLP
Counsel for Third-Party Respondent
 - a. James H. Hohenstein
jim.hohenstein@hplawnyc.com

Dated: September 23, 2025

By: /s/ **Peter F. Black**

Peter F. Black
MILLS BLACK LLP

*Counsel to Samsung
Electronics America, Inc.*